

Satish Sharma and Ms. Kusum Chaudhary,
Advocates, for the petitioner in Cr. MMO No.84 of
2024.

Mr. Ajay Kochhar, Senior Advocate with Mr.
Varun Chauhan and Mr. Bhairav Gupta,
Advocates, for the petitioners in Cr. MMO No.798
of 2023.

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For the respondent: Mr. Rajan Kahol, Mr. Vishal Panwar & Mr. B.C.
Verma, Additional Advocates General and Mr. Ravi
Chauhan, Deputy Advocate General, for

respondent/State in both the petitions.

Mr. Anubhav Chopra, Advocate, for respondents
No.3 and 4 in Cr. MMO No.84 of 2024.

Mr. Aman Thakur, Advocate, for respondent No.3
in Cr. MMO No.798 of 2023.

Sandeep Sharma, J. (Oral)

Since common question of facts and law are involved in both the above captioned cases, same are heard together and are now being disposed of vide common judgment.

2. By way of aforesaid petitions filed under Section 482 Cr.P.C., prayer has been made on behalf of the petitioners for quashing of FIR No.61/2020 dated 02.06.2020 registered at Police Station East, District Shimla, under Sections 306, 498-A and 34 of Indian Penal Code as well as consequent proceedings, pending in the Court of learned Sessions Judge, District Shimla vide Session Trial No No.44-S-7/2021.

3. Precisely, the facts of the case, as emerge from the pleadings as well as other material available on record reveals that marriage of petitioner namely Tarunjeet Singh Bhogal was solemnized with late Jaspreet Kaur i.e. daughter of respondent No.2, on 14.02.2014 at Chandigarh, as per Hindu rites.

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4. After marriage, though petitioner namely Tarunjeet Singh Bhogal and late Jaspreet Kaur lived with the parents and grandparents of the petitioner, Tarunjeet Singh Bhogal, in the ancestral house at Kanlog, Shimla, for some time, but subsequently, on account of some dispute, they both firstly shifted to Chandigarh and then to Mumbai and started living separately. With effect from aforesaid date till October 2017, both petitioner-Tarunjeet Singh Bhogal and late Jaspreet Kaur lived in Chandigarh and Mumbai, thereafter they again shifted back to Shimla.

5. While petitioner-Tarunjeet Singh Bhogal and late Jaspreet Kaur were staying in Chandigarh, they were blessed with daughter namely Ebadat. Unfortunately, late Jaspreet Kaur was unable to live happily at her matrimonial house in Shimla and on account of matrimonial discord inter se petitioners, late Jaspreet Kaur filed complaint before Women Cell, Chandigarh, alleging therein her maltreatment at the hands of the petitioner.

6. Pursuant to notices issued in the aforesaid proceedings, petitioner-Tarunjeet Singh Bhogal along with late Jaspreet Kaur appeared before the Women Cell and matter was settled amicably inter se them. As a result thereof, complaint made by late Jaspreet Kaur was withdrawn.

Unfortunately, on 02.06.2020, late Jaspreet Kaur committed suicide by .

hanging herself from a ceiling hook, after locking herself in a room in the house of the petitioners. Since, the room where deceased committed suicide was bolted from inside and was not being opened, petitioners informed the Police telephonically, which after reaching the house of the petitioners, broke open the door and found deceased hanging herself with the ceiling hook of the room. Parents of the deceased were informed telephonically by petitioner-Tarunjeet Singh Bhogal as well as Police. However, respondent No.2 (for short, hereinafter 'complainant') on reaching Shimla got her statement recorded under Section 154 Cr.P.C., alleging therein that her deceased daughter committed suicide on account of maltreatment meted to her by the petitioners. In the aforesaid background, FIR sought to be quashed, came to be initiated against petitioner-Tarunjeet Singh Bhogal, husband of the deceased and petitioners-Mr. Jatinder Singh Bhogal and Mrs. Gursharan

Kaur, father-in-law and mother-in-law of the deceased.

7. Though, after completion of investigation, Police has already filed Challan in the competent Court of law and petitioners have been charged for the offences, allegedly having been committed by them under Sections 306, 498-A and 34 of the Indian Penal Code, but they have approached this Court in the instant proceedings for quashing of the FIR on the ground that no case much less under Sections 306, 498-A and 34 of .

IPC is made out and as such, FIR as well as other consequent proceedings imitated against them deserves to be quashed and set aside.

8. Case file reveals that though respondent/complainant was issued notice in the instant proceedings, but despite notice, she has failed to put her appearance and as such, this Court has no option, but to decide the petition on the basis of material already available on record.

9. Respondent/State has filed reply under the signature of Superintendent of Police, District Shimla, H.P., wherein facts as have been noted above, have been not disputed, however, prayer made on behalf of the petitioners for quashing of FIR has been objected on the ground that charge under Sections 306, 498-A and 34 of IPC already stands framed against the petitioners. It has been further stated in the reply that there is overwhelming evidence adduced on record by the Investigating Agency, suggestive of the fact that late Jaspreet Kaur was compelled to commit suicide by petitioners on account of continuance maltreatment and demand of dowry. Besides above, very maintainability of the petition filed under Section 482 Cr.P.C. has been laid challenge.

10. I have heard the parties and gone through the records. Since very question of maintainability of petition filed under Section 482 Cr.P.C., .

seeking therein direction to quash the FIR has been raised on behalf of the respondent/State, this Court in order to ascertain the correctness and genuineness of rival submission made by learned counsel representing the parties, deems it necessary to discuss/elaborate the scope and competence of this Court to quash the criminal proceedings while exercising power under Section 482 Cr.P.C.

11. A three-Judge Bench of the Hon'ble Apex Court in case titled State of Karnataka vs. L. Muniswamy and others, 1977 (2) SCC 699, has held that High Court while exercising power under Section 482 Cr.PC is entitled to quash the proceedings, if it comes to the conclusion that allowing the proceeding to continue would be an abuse of the process of the Court or that the ends of justice require that the proceeding ought to be quashed.

12. Subsequently, in case titled State of Haryana and others vs. Bhajan Lal and others, 1992 Supp (1) SCC 335, the Hon'ble Apex Court while elaborately discussing the scope and competence of High Court to quash criminal proceedings under Section 482 Cr.PC laid down certain principles governing the jurisdiction of High Court to exercise its power.

After passing of aforesaid judgment, issue with regard to exercise of power under Section 482 Cr.PC, again came to be considered by the Hon'ble Apex .

Court in case bearing Criminal Appeal No.577 of 2017 (arising out of SLP (CrL.) No. 287 of 2017) titled Vineet Kumar and Ors. v. State of U.P. and Anr., wherein it has been held that saving of the High Court's inherent powers, both in civil and criminal matters, is designed to achieve a salutary public purpose i.e. court proceedings ought not to be permitted to

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r to degenerate into a weapon of harassment or persecution.

The Hon'ble Apex Court in Prashant Bharti v. State (NCT of Delhi), (2013) 9 SCC 293, relying upon its earlier judgment titled as Rajiv Thapar and Ors v. Madan Lal Kapoor, (2013) 3 SCC 330, reiterated that High Court has inherent powers under Section 482 Cr.PC., to quash the proceedings against an accused, at the stage of issuing process, or at the stage of committal, or even at the stage of framing of charge, but such power must always be used with caution, care and circumspection. In the aforesaid judgment, the Hon'ble Apex Court concluded that while exercising its inherent jurisdiction under Section 482 of the Cr.PC, Court exercising such power must be fully satisfied that the material produced by the accused is such, that would lead to the conclusion, that his/their defence is based on sound, reasonable, and indubitable facts and the material adduced on record itself overrule the veracity of the allegations contained in the accusations levelled by the prosecution/complainant. Besides above, .

the Hon'ble Apex Court further held that material relied upon by the accused should be such, as would persuade a reasonable person to dismiss and condemn the actual basis of the accusations as false. In such a situation, the judicial conscience of the High Court would persuade it to exercise its power under Section 482 of the Cr.P.C. to quash such criminal proceedings, for that would prevent abuse of process of the court, and secure the ends of justice. In the aforesaid judgment titled as Prashant Bharti v. State (NCT of Delhi), (2013) 9 SCC 293, the Hon'ble Apex Court has held as under:-

"22. The proposition of law, pertaining to quashing of criminal proceedings, initiated against an accused by a High Court under Section 482 of the Code of Criminal Procedure (hereinafter referred to as "the Cr.P.C.") has been dealt with by this Court in Rajiv Thapar & Ors. vs. Madan Lal Kapoor wherein this Court inter alia held as under: (2013) 3 SCC 330, paras 29-30)

29. The issue being examined in the instant case is the jurisdiction of the High Court under Section 482 of the Cr.P.C., if it chooses to quash the initiation of the prosecution against an accused, at the stage of issuing process, or at the stage of committal, or even at the stage of framing of charges. These are all stages before the commencement of the actual trial. The same parameters would naturally be available for later stages as well. The power vested in the High Court under Section 482 of the

Cr.P.C., at the stages .

referred to hereinabove, would have far reaching consequences, inasmuch as, it would negate the prosecution's/complainant's case without allowing the prosecution/complainant to lead evidence.

Such a determination must always be rendered with caution, care and circumspection. To invoke its inherent jurisdiction under Section 482 of the Cr.P.C. the High Court has to be fully satisfied, that the material produced by the accused is such, that would lead to the conclusion, that his/their defence is based on sound, reasonable, and indubitable facts; the material produced is such, as would rule out and displace the assertions contained in the charges levelled against the accused; and the material produced is such, as would clearly reject and overrule the veracity of the allegations contained in the accusations levelled by the prosecution/complainant. It should be sufficient to rule out, reject and discard the accusations levelled by the prosecution/complainant, without the necessity of recording any evidence. For this the material relied upon by the defence should not have been refuted, or alternatively, cannot be justifiably refuted, being material of sterling and impeccable quality. The material relied upon by the accused should be such, as would persuade a reasonable person to dismiss and condemn the actual basis of the accusations as false. In such a situation, the judicial conscience of the High Court would persuade it to exercise its power under Section 482 of the Cr.P.C. to quash such criminal proceedings, for that would prevent abuse of process of the court, and secure the ends of justice.

30. Based on the factors canvassed in the foregoing paragraphs, we would delineate the following steps to determine the veracity of a prayer for quashing, .

raised by an accused by invoking the power vested in the High Court under Section 482 of the Cr.P.C.:-

30.1 Step one, whether the material relied upon by the accused is sound, reasonable, and indubitable, i.e., the material is of sterling and impeccable quality?

30.2 Step two, whether the material relied upon by the accused, would rule out the assertions contained in the charges levelled against the accused, i.e., the material is sufficient to reject and overrule the factual assertions contained in the complaint, i.e., the material is such, as would persuade a reasonable person to dismiss and condemn the factual basis of the accusations as false. 30.3 Step three, whether the material relied upon by the accused, has not been refuted by the prosecution/complainant;

and/or the material is such, that it cannot be justifiably refuted by the prosecution/complainant?

30.4 Step four, whether proceeding with the trial would result in an abuse of process of the court, and would not serve the ends of justice?

30.5 If the answer to all the steps is in the affirmative, judicial conscience of the High Court should persuade it to quash such criminal - proceedings, in exercise of power vested in it under Section 482 of the Cr.P.C. Such exercise of power, besides doing justice to the accused, would save precious court time, which would otherwise be wasted in holding such a trial (as well as, proceedings .

arising therefrom) specially when, it is clear that the same would not conclude in the conviction of the accused."

14. It is quite apparent from the bare perusal of aforesaid judgments passed by the Hon'ble Apex Court from time to time that where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him/her due to private and personal grudge, High Court while exercising power under Section 482 Cr.PC can proceed to quash the proceedings.

15. Mr. Rajan Kahol, learned Additional Advocate General, contended that since investigating agency after having completed investigation has already filed challan under Section 173 Cr.PC., in the competent Court of law, prayer made on behalf of the petitioners for quashing FIR cannot be accepted at this stage. However, this Court is not inclined to accept the aforesaid submission made by the learned Additional Advocate General for the reason that High Court while exercising jurisdiction under Section 482 Cr.PC can even proceed to quash charge, if it is satisfied that evidentiary material adduced on record would not reasonably connect the accused with the crime and if trial in such situations is allowed to continue, person arraigned as an accused would be .

unnecessarily put to ordeals of protracted trial on the basis of flippant and vague evidence.

16. Recently, the Hon'ble Apex Court in case titled Anand Kumar Mohatta and Anr. v. State (Government of NCT of Delhi) Department of Home and Anr, AIR 2019 SC 210, has held that abuse of process caused by FIR stands aggravated if the FIR has taken the form of a charge sheet after investigation and as such, the abuse of law or miscarriage of justice can be rectified by the court while exercising power under Section 482 Cr.PC. The relevant paras of the judgment are as under:

"16. Even otherwise it must be remembered that the provision invoked by the accused before the High Court is Section 482 Cr. P.C and that this Court is hearing an appeal from an order under Section 482 of Cr.P.C. Section 482 of Cr.P.C reads as follows: -

"482. Saving of inherent power of the High Court.- Nothing in this Code shall be deemed to limit or affect the inherent powers of the High Court to make such orders as may be necessary to give effect to any order under this Code, or to prevent abuse of the process of any Court or otherwise to secure the ends of justice."

17. There is nothing in the words of this Section which restricts the exercise of the power of the Court to prevent the abuse of process of court or miscarriage of justice only to the stage of the FIR. It is settled principle of law that the High court can exercise jurisdiction under Section .

482 of Cr.P.C even when the discharge application is pending with the trial court (G. Sagar Suri and Anr. V. State of U.P. and Others, (2000) 2 SCC 636 (para 7), Umesh Kumar v. State of Andhra Pradesh and Anr. (2013) 10 SCC 591 (para 20). Indeed, it would be a travesty to hold that proceedings initiated against a person can be interfered with at the stage of FIR but not if it has advanced, and the allegations have materialized into a charge sheet. On the contrary it could be said that the abuse of process caused by FIR stands aggravated if the FIR has taken the form of a charge sheet after investigation. The power is undoubtedly conferred to prevent abuse of process of power of any court."

17. The Hon'ble Apex Court in case titled Pramod Suryabhan Pawar v. The State of Maharashtra and Anr, (2019) 9 SCC 608, has elaborated the scope of exercise of power under Section 482 Cr.PC, the relevant para whereof reads as under:-

"7. Section 482 is an overriding section which saves the inherent powers of the court to advance the cause of justice. Under Section 482 the inherent jurisdiction of the court can be exercised (i) to give effect to an order under the CrPC; (ii) to prevent the abuse of the process of the court; and (iii) to otherwise secure the ends of justice. The powers of the court under Section 482 are wide and the court is vested with a significant amount of discretion to decide whether or not to exercise them. The court should be guarded in the use of its extraordinary jurisdiction to quash an FIR or criminal proceeding as it denies the prosecution the opportunity to establish its case through investigation and evidence. These principles have been consistently followed and re-iterated by this Court. In Inder Mohan Goswami v State of Uttaranchal⁵, this Court .

observed.

"23. This Court in a number of cases has laid down the scope and ambit of courts' powers under Section 482 CrPC. Every High Court has inherent powers to act ex debito justitiae to do real and substantial justice, for the administration of which alone it exists, or to prevent abuse of the process of the court. Inherent power under Section 482 CrPC can be exercised:

(i) to give effect to an order under the Code;

(ii) to prevent abuse of the process of the court, and (iii) to otherwise secure the ends of justice.

24. Inherent powers under Section 482 CrPC though wide have to be exercised sparingly, carefully and with great caution and only when exercise is justified by the tests specifically laid down in this

section itself. Authority of the court exists for the advancement of justice. If any abuse of the process leading to injustice is brought to the notice of the court, then the court would be justified in preventing injustice by invoking inherent powers in absence of specific provisions in the statute."

8. Given the varied nature of cases that come before the High Courts, any strict test as to when the court's extraordinary powers can be exercised is likely to tie the court's hands in the face of future injustices. This Court in *State of Haryana v Bhajan Lal*⁶ conducted a detailed study of the situations where the court may exercise its extraordinary jurisdiction and laid down a list of illustrative examples of where quashing may be appropriate. It is not necessary to discuss all the examples, but a few bear relevance to the present case. The court in *Bhajan Lal* noted that quashing may be .

appropriate where, (2007) 12 SCC 1 1992 Supp (1) SCC "102. (1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2).

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(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge."

In deciding whether to exercise its jurisdiction under Section 482, the Court does not adjudicate upon the veracity of the facts alleged or enter into an appreciation of competing evidence presented. The limited question is whether on the face of the FIR, the allegations constitute a cognizable offence. As this Court noted in *Dhruvaram Murlidhar Sonar v State of Maharashtra*, 2018 SCCOnLine SC3100 ("*Dhruvaram Sonar*") :

"13. It is clear that for quashing proceedings, meticulous analysis of factum of taking cognizance of an offence by the Magistrate is not called for.

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Appreciation of evidence is also not permissible in exercise of inherent powers. If the allegations set out in the complaint do not constitute the offence of which cognizance has been taken, it is open to the High Court to quash the same in exercise of its inherent powers."

18. Reliance is also placed upon judgment of Hon'ble Apex Court in 2012 (13) SCC 614 titled as *Satish Mehra Vs. State (NCT of Delhi)*, whereby it was held as under:

"13. Though a criminal complaint lodged before the court under the provisions of Chapter XV of the Code of Criminal Procedure or an FIR lodged in the police station under Chapter XII of the Code has to be brought to its logical conclusion in accordance with the procedure prescribed, power has been conferred under Section 482 of the Code to interdict such a proceeding in the event the institution/continuance of the criminal proceeding amounts to an abuse of the process of court. An early discussion of the law in this regard can be found in the decision of this Court in R.P. Kapur v. State of Punjab [AIR 1960 SC 866 : 1960 Cri LJ 1239] wherein the parameters of exercise of the inherent power vested by Section 561-A of the repealed Code of Criminal Procedure, 1898 (corresponding to Section 482 CrPC, 1973) had been laid down in the following terms:

(AIR p. 869, para 6)

(i) Where institution/continuance of criminal proceedings against an accused may amount to the abuse of the process of the court or that the quashing of the impugned proceedings would secure the ends of justice;

(ii) where it manifestly appears that there is a legal bar against the institution or continuance of the said proceeding e.g. want of sanction;

(iii) where the allegations in the first information report or the complaint taken at their face value and accepted in their entirety, do not constitute the offence alleged; and .

(iv) where the allegations constitute an offence alleged but there is either no legal evidence adduced or evidence adduced clearly or manifestly fails to prove the charge.

19. Now in light of aforesaid law laid down by Hon'ble Apex Court, I shall be making an endeavour to examine and consider the prayer made in the instant petition, vis-a-vis factual matrix of the case.

20. FIR sought to be quashed in the instant proceedings was lodged on the basis of statement made by respondent No.2, i.e. mother of the deceased. Interestingly, perusal of statement recorded under Section 154 Cr.P.C. nowhere talks about demand of dowry, rather, precise allegation made on behalf of respondent/complainant is that late Jaspreet Kaur was continuously maltreated by the petitioners and as such, she was compelled to commit suicide. It is not understood how and on what basis, Investigating Agency proceeded to incorporate Section 498-A IPC. This Court is further surprised to see that trial Court without verifying and ascertaining the factum, if any, of demand of dowry, proceeded to frame charge under Section 498-A IPC in mechanical manner, as a result thereof, great prejudice has been caused to petitioners.

21. If the statement of complainant recorded under Section 154 Cr.P.C. (available at page 70 of paper-book of Cr.MMO No.84/2024) is .

perused in its entirety, it nowhere speaks about demand of dowry, rather, repeatedly it has been alleged by the respondent No.2/complainant that her daughter late Jaspreet Kaur was constantly tortured mentally and physically by her husband as well as in-laws.

22. As has been taken note hereinabove, marriage inter se petitioner-Tarunjeet Singh Bhogal and late Jaspreet Kaur was solemnized on 14.09.2014 at Chandigarh, but after marriage, petitioner-Tarunjeet Singh Bhogal and late Jaspreet Kaur mostly remained in Chandigarh and Mumbai and it is only in the year 2017, they came back to Shimla. Though, material adduced on record reveals that there were matrimonial discord inter se late Jaspreet Kaur and petitioners, but save and except, one complaint given to Women Cell, no complaint was ever lodged by late Jaspreet Kaur or respondent No.2 to the Police with regard to maltreatment as well as demand of dowry, if any, by the petitioners. However, as has been taken note hereinabove, matter was compromised inter se them before the Women Cell, as a result thereof, late Jaspreet Kaur had withdrawn her complaint.

23. After more than six years of marriage, late Jaspreet Kaur committed suicide by hanging herself in the house of petitioners, but it is .

not in dispute that the room, in which late Jaspreet Kaur committed suicide was bolted from inside and the same was opened by the Police. It is also not in dispute that no suicide note, containing therein allegation, if any, against petitioner-Tarunjeet Singh Bhogal and other, was ever recovered, rather, FIR sought to be quashed, came to be instituted at the behest of respondent No.2, who though, nowhere gave specific incident with regard to maltreatment, but stated that after marriage of her daughter with petitioner-Tarunjeet Singh Bhogal, she was being constantly harassed.

24. Having perused contents of FIR, sought to be quashed, vis-a-vis ingredients of Section 306 and Section 498 IPC, this Court is persuaded to agree with Mr. Ajay Kochhar and Mr. Bimal Gupta, learned Senior Counsel representing the petitioners in both the petitions, that no case much less under Sections 306, 498-A and 34 of IPC is made out, but yet they have been wrongly charged with the aforesaid offences. Above named counsels vehemently argued that once there was no allegation of abetment to commit suicide by the deceased against any of the petitioner, nor there was any allegation that they abetted the commission of offence, there was no occasion, if any, for trial Court to charge petitioners with Section 306 IPC.

25. Similarly, above named counsel vehemently argued that once there was no allegation of demand of dowry, especially cruelty, if any, .

meted to the deceased, on account of bringing less dowry, petitioners could not have been charged with Section 498-A IPC. Learned Senior Counsel representing the parties further argued that once it is not in dispute that petitioner, Tarunjeet Singh Bhogal, along with deceased-wife had been living separately for long period and at no point of time, there was dispute

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r to inter se deceased and petitioners-Mr. Jatinder Singh Bhogal and Mrs. Gursharan Kaur, Section 34 of IPC otherwise could not have been attracted.

Learned Senior Counsels representing parties while making this Court peruse allegation contained in the FIR strenuously argued that there was only one complaint with regard to dispute inter se parties, which was on account of trivial issue, but Investigating Agency with a view to sensationalize the issue, falsely made case against petitioners under Sections 306, 498-A and 34 of IPC.

27. While justifying the framing of charge against petitioners under Sections 306, 498-A and 34 of IPC, Mr. Rajan Kahol, learned Additional Advocate General vehemently argued that there is overwhelming evidence adduced on record by the Investigating Agency, suggestive of the fact that late Jaspreet Kaur was constantly maltreated by petitioners for bringing less dowry and as such, she was compelled to commit suicide. He submitted that bare reading of allegations in the FIR are not sufficient to .

conclude complicity, if any, of petitioners in the case registered against them under Sections 306, 498-A and 34 of IPC, rather, for that purpose, entire material is required to be seen by this Court. He submitted that this Court cannot lose site of the fact that trial Court after having examined evidence adduced on record by prosecution has proceeded to frame charge under Sections 306, 498-A and 34 of IPC. He submitted that since learned trial Court has already examined the evidence minutely, while framing of charge, it may not be appropriate for this Court, at this stage, while exercising power under Section 482 Cr.P.C. to re-examine the evidence, especially when correctness of the same is yet to be established by the prosecution by leading cogent and convincing evidence. He submitted that though in FIR, sought to be quashed, no specific allegation is there with regard to demand of dowry, but in proceeding initiated by late Jaspreet Kaur, under Domestic Violence Act before the Women Cell, Chandigarh, she had specifically alleged that dowry is being demanded. However, Mr. Kahol was unable to dispute that complaint under Domestic Violence Act filed by late Jaspreet Kaur was not pressed, rather, she withdrew the same on account of amicable settlement inter se parties, as is evident from the statement of late Jaspreet Kaur (available at page No.39 of the paper-book of Cr.MMO No.798/2023).

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28. Unfortunately, late Jaspreet Kaur committed suicide, but certainly this Court has been not able to find substantial material on record to agree with Mr. Rajan Kahol, learned Additional Advocate General that above named person committed suicide on account of maltreatment, if any, meted to her by the petitioners as well as demand of dowry. No doubt, there were certain differences inter se deceased and petitioners and in that regard, matter was reported to Women Cell, Chandigarh, but those were ultimately settled and thereafter they both started living happily.

29. On 20.06.2020, late Jaspreet Kaur committed suicide by hanging herself, but without leaving any suicide note. Though, it has been claimed on behalf of the prosecution that late Jaspreet Kaur committed suicide after being instigated/abeted by petitioners, but there is no evidence available on record qua aforesaid aspect of the matter. To invoke Section 306 IPC, prosecution is under

obligation to prove that there was a mens rea to abet/instigate the deceased to commit suicide, however, during proceedings, learned Additional Advocate General was unable to point out any such material, from where, it can be inferred that petitioners instigated/abeted deceased to commit suicide.

30. To prove allegation, if any, under Section 306 IPC, it is incumbent upon the prosecution to prove abetment or instigation, if any, at .

the hands of accused named in the FIR, which is totally missing in the case at hand. At this stage, it would be apt to take note of provision contained under Section 306 of IPC, which reads as under:-

"Section 306- Abetment of suicide.- If any person commits suicide, whoever abets the commission of such suicide , shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

31. Abetment is defined under Section 107 of IPC, which reads as under:-

"Abetment of a thing.--A person abets the doing of a thing, who--

(First) -- Instigates any person to do that thing; or (Secondly)--Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or (Thirdly)-- Intentionally aids, by any act or illegal omission, the doing of that thing. Explanation 1.--A person who, by willful misrepresentation, or by willful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing. Illustration A, a public officer, is authorized by a warrant from a Court of Justice to apprehend Z. B, knowing that fact and also that C is not Z, willfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by .

instigation the apprehension of C. Explanation 2.--Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitate the commission thereof, is said to aid the doing of that act."

32. Similarly, the dictionary meaning of the word instigate' is to bring about or initiate, incite someone to do something. The Hon'ble Apex Court in the case of Ramesh Kumar Vs. State of Chhattisgarh 2001 9 SCC 618 has defined the word 'instigate' as instigation is to goad, urge forward, provoke, incite or encourage to do an act."

33. Hon'ble Apex Court in case of S.S.Cheena Vs. Vijay Kumar Mahajan and Anr. (2010) 12 SCC 190 has dealt with scope and ambit of Section 107 IPC and its co-relation with Section 306 IPC. Relevant pars of the aforesaid judgment read as under:

"Abetment involves a mental process of instigating a person or intentionally aiding a person in doing of a thing. Without a positive act on the part of the accused to instigate or aid in committing suicide, conviction cannot be sustained. The intention of the legislature and the ratio of the cases decided by the Supreme Court is clear that in order to convict a person under Section 306 IPC there has to be a clear mens rea to commit the offence. It also requires an active act or direct act which led the deceased to commit suicide seeing no option and that act must have been intended to push the deceased into such a position that he committed suicide."

34. In the case of M. Arjunan Vs. State, Represented by its Inspector of Police (2019) 3 SCC 315, the Hon'ble Apex Court has held as .

under:

"The essential ingredients of the offence under Section 306 I.P.C. are:

(i) the abetment; (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There should be evidence capable of suggesting that the accused intended by such act to instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied, accused cannot be convicted under Section 306 I.P.C."

35. The Hon'ble Apex Court in Ude Singh & Ors. Vs. State of Haryana, 2019 17 SCC 301, has held that in cases of alleged abetment of suicide, there must be a proof of direct or indirect acts of incitement to the commission of suicide. It could hardly be disputed that the question of cause of a suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behavior and responses/reactions. In the case of accusation for abetment of suicide, the Court is required to look for cogent and convincing proof of the acts of incitement to the commission of suicide. In the case of suicide, mere allegation of harassment of the deceased by another person would not suffice unless there is such action on the part of the accused which compels the person to commit suicide and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted in the commission of suicide by another or not, could only be .

gathered from the facts and circumstances of each case.

36. The Hon'ble Apex Court in a case (Geo Varghese v. State of Rajasthan and Anr, 2021 (4) RCR (Criminal) 361) where student committed suicide after being reprimanded by the teacher/administration, categorically held that reprimanding student would not amount to reads as under:

r to instigation to commit suicide. Relevant para of the aforesaid judgment "27. It is a solemn duty of a teacher to instil discipline in the students. It is not uncommon that teachers reprimand a student for not being attentive or not being upto the mark in studies or for bunking classes or not attending the school. The disciplinary measures adopted by a teacher or other authorities of a school, reprimanding a student for his indiscipline, in our considered opinion, would not tantamount to provoking a student to commit suicide, unless there are repeated specific allegations of harassment and insult deliberately without any justifiable cause or reason. A simple act of reprimand of a student for his behaviour or indiscipline by a teacher, who is under moral obligations to inculcate the good qualities of a human being in a student would definitely not amount to instigation or intentionally aid to the commission of a suicide by a student.

28. 'Spare the rod and spoil the child' an old saying may have lost its relevance in present days and Corporal punishment to the child is not recognised by law but that does not mean that a teacher or school authorities have to shut their eyes to any indiscipline act of a student. It is not only a moral duty of a teacher but one of the legally assigned duty under Section 24 (e) of the Right of Children to Free and Compulsory Education Act, 2009 to hold regular meetings with the parents and guardians and apprise them about the regularity in attendance, ability to learn, progress made in learning and any other act or relevant information about the child.

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32. Considering the facts that the appellant holds a post of a teacher and any act done in discharge of his moral or legal duty without their being any circumstances to even remotely indicate that there was any intention on his part to abet the commission of suicide by one of his own pupil, no mens reacan be attributed. Thus, the very element of abetment is conspicuously missing from the allegations levelled in the FIR. In the absence of the element of abetment missing from the allegations, the essential ingredients of offence under section 306 IPC do not exist ** ** *

40. In the absence of any material on record even, prima-facie, in the FIR or statement of the complainant, pointing out any such circumstances showing any such act or intention that he intended to bring about the suicide of his student, it would be absurd to even think that the appellant had any intention to place the deceased in such circumstances that there was no option available to him except to commit suicide."

37. In the aforesaid judgment, the Hon'ble Apex Court has categorically held that simple act of reprimand of a student for his behaviour or indiscipline by a teacher, who is under moral obligations to inculcate the good qualities of a human being in a student would definitely not amount to instigation or intentional aid to the commission of a suicide by a student. In the absence of the element of abetment missing from the allegations, the essential ingredients of offence under Section 306 IPC do not exist. Apart from above, the Hon'ble apex Court has held that victim committed suicide allegedly for being reprimanded for repeatedly bunking classes. Reading of victim's suicide note shows that .

same was penned by immature and hypersensitive mind, thus act of accused being teacher would not ordinarily induce a circumstances to a student to commit suicide.

38. Close scrutiny of aforesaid law taken into consideration clearly reveals that mere allegation of harassment of deceased by the petitioners named in the FIR may not be sufficient to conclude guilt, if any, under Section 306 of IPC, rather to bring the accused in ambit of Section 306 of IPC, it is required to be established on record that deceased committed suicide after being instigated and abetted by the petitioners, which is totally missing in the instant case.

39. Contents of FIR and Final Report filed under Section 173 Cr.P.C, if are taken to be correct, on its face value, do not prima facie constitute the offence against the accused. Neither FIR nor Final Report filed under Section 173 Cr.P.C, disclose offences, if any, punishable under Section 306 IPC against the accused named in the FIR. There is no sufficient evidence available on record to connect the accused named in the FIR for the offences alleged to have been committed by them.

40. It is quite apparent from the aforesaid position of law, taken into consideration that in case of accusation of abetment to suicide, Court .

is required to look for cogent and convincing proof for the acts of incitement to the commission of suicide. Mere allegation of maltreatment and harassment to the deceased by another person would not suffice, unless there is such action on the part of accused, which compelled the person to commit suicide and such an offending action ought to be proximate to the time of occurrence. However, in the instant case, there appears to be no cogent and convincing proof, suggestive of the fact that petitioner abetted/instigated deceased to commit suicide and as such, no case much less under Section 306 IPC is made out against the petitioners.

41. Similarly, this Court finds that both Investigating Agency as well as Court responsible for framing charge, wrongly proceeded to charge petitioners under Section 498-A IPC, which reads as under:

"498A. Husband or relative of husband of a woman subjecting her to cruelty.--

Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.-- For the purpose of this section, "cruelty" means--

(a)any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) .

of the woman; or

(b)harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand."

42. For invoking provision contained in the aforesaid provision of law, 'cruelty' has been specifically defined. As per explanation 'B' of Section 498-A, harassment of woman must be with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

43. In the instant case, there is no whisper in the FIR that petitioner ever coerced or maltreated the deceased on account of her bringing less dowry or made demand of dowry. Similarly there is no allegation that petitioner at any point of time compelled the deceased to part ways with the property, if any, she possessed or coerced her to hand over the property to which she is legally entitled, rather in the case at hand, dispute inter se petitioners and late Jaspreet Kaur was on account of very trivial issue. As per own case of the complainant, petitioners were unhappy with the deceased on account of the fact that she never used to do household work.

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44. Reliance is placed on judgment rendered by the Hon'ble Apex Court in Shakson Belthissor v. State of Kerala and Anr, 2009 (14) SCC 466, wherein it has been held that since there is no allegation of harassment on account of dowry, no offence of cruelty either under Explanation (a) or Explanation (b) of Section 498A IPC is made out.

r to Relevant paras of the aforesaid judgment reads as under:

"26. It was fairly agreed at bar that the aforesaid FIR was filed by Respondent No. 2 with the intention of making out a prima facie case of offence under Section 498A of the Indian Penal Code. The charge sheet, which was filed by the police was under Section 498A of the Indian Penal Code. As to whether or not in the FIR filed and in the charge sheet a case of Section 498A IPC is made out or not is an issue, which is required to be answered in this appeal.

27. Section 498A of the IPC reads as follows:

"498A. Husband or relative of husband of a woman subjecting her to cruelty.

Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation-For the purpose of this section, "cruelty"

means-

(a) Any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health whether .

mental or physical) of the woman; or

(b) Harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her meet such demand".

In the light of the aforesaid language used in the Section, the provision would be applicable only to such a case where the husband or the relative of the husband of a woman subjects the said woman to cruelty. When the ingredients of the aforesaid Section are present in a particular case, in that event the person concerned against whom the offence is alleged would be tried in accordance with law in a trial instituted against him and if found guilty the accused would be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

28. The said section contains an explanation, which defines "cruelty" as understood under Section 498A IPC. In order to understand the meaning of the expression 'cruelty' as envisaged under Section 498A, there must be such a conduct on the part of the husband or relatives of the husband of woman which is of such a nature as to cause the woman to commit suicide or to cause grave injury or danger to life, limb or health whether mental or physical of the woman.

29. When we examine the facts of the present case particularly the FIR and the charge sheet we find that there is no such allegation either in the FIR or in the charge sheet making out a prima facie case as narrated under explanation

(a). There is no allegation that there is any such conduct on the part of the appellant which could be said to be amounting to cruelty of such a nature as is likely to cause .

the Respondent No. 2 to commit suicide or to cause any injury to her life. The ingredient to constitute an offence under explanation (a) of Section 498A IPC are not at all mentioned either in FIR or in charge sheet and in absence thereof, no case is made out. Therefore, explanation (a) as found in Section 498A IPC is clearly not attracted in the present case.

30. We, therefore, now proceed to examine as to whether the case would fall under explanation (b) of Section 498A of IPC constituting cruelty of the nature as mentioned in explanation (b). In order to constitute cruelty under the said provision there has to be harassment of the woman with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or a case is to be made out to the effect that there is a failure by her or any person related to her to meet such demand. When the allegation made in the FIR and charge sheet is examined in the present case in the light of the aforesaid provision, we find that no prima facie case even under the aforesaid provision is made out to attract a case of cruelty."

45. It would also be apt to take note of judgment of Hon'ble Apex Court in Wasim v. State (NCT of Delhi) (2019) 7 SCC 435, wherein it has been held as under:

"10. The conviction of the Appellant by the Trial Court under Section 498-A was not for demand of dowry. The conviction under Section 498-A was on account of mental cruelty by the Appellant in having an extra marital relation and the threats held out by him to the deceased that he would leave her and marry Poonam. 10. The High Court acquitted the Appellant under Section 306 IPC by reaching a conclusion on the basis of evidence that the charge of .

abetment of suicide on part of the Appellant was not proved.

Without any discussion of the evidence pertaining to demand of dowry and without dealing with the findings recorded by the Trial Court regarding the demand of dowry, the High Court held that the offence under Section 498-A was made out.

11. Cruelty is dealt with in the Explanation to Section 498-A as follows:

498-A. Husband or relative of husband of a woman subjecting her to cruelty.--Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.--For the purpose of this section, "cruelty"

means--

(a) any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

12. Conviction under Section 498-A IPC is for subjecting a woman to cruelty. Cruelty is explained as any willful conduct which is likely to drive a woman to commit suicide or to cause grave injury or danger to life, limb or health. Harassment of a woman by unlawful demand of dowry also partakes the character of 'Cruelty'. It is clear from a plain .

reading of Section 498-A that conviction for an offence under Section 498-A IPC can be for willful conduct which is likely to drive a woman to commit suicide OR for dowry demand. Having held that there is no evidence of dowry demand, the Trial Court convicted the Appellant under Section 498-A IPC for his willful conduct which drove the deceased to commit suicide. The Appellant was also convicted under Section 306 IPC as the Trial Court found him to have abetted the suicide by the

deceased.

14. The High Court ought not to have convicted the Appellant under Section 498-A for demand of dowry without a detailed discussion of the evidence on record, especially when the Trial Court found that there is no material on record to show that there was any demand of dowry. The High Court did not refer to such findings of the Trial Court and record reasons for its disapproval."

46. Reliance is also placed on judgment passed by the Hon'ble Apex Court in Varala Bharath Kumar and Anr v. State of Telangana and Anr, 2017 AIR (SC) 4434, wherein it has been held as under:

"7. It is by now well settled that the extraordinary power under Article 226 or inherent power under Section 482 of the Code of Criminal Procedure can be exercised by the High Court, either to prevent abuse of process of the court or otherwise to secure the ends of justice. Where allegations made in the First Information Report/the complaint or the outcome of investigation as found in the Charge Sheet, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out the case against the accused; where the allegations do not disclose the ingredients of the offence alleged; where the uncontroverted .

allegations made in the First Information Report or complaint and the material collected in support of the same do not disclose the commission of offence alleged and make out a case against the accused; where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge, the power under Article 226 of the Constitution of India or under Section 482 of Code of Criminal Procedure may be exercised.

While exercising power under Section 482 or under Article 226 in such matters, the court does not function as a Court of Appeal or Revision. Inherent jurisdiction under Section 482 of the Code though wide has to be exercised sparingly, carefully or with caution and only when such exercise is justified by the tests specifically laid down under Section 482 itself. It is to be exercised ex debito justitiae to do real and substantial justice, for the administration of which alone courts exist. The court must be careful and see that its decision in exercise of its power is based on sound principles. The inherent powers should not be exercised to stifle a legitimate prosecution. Of course, no hard and fast rule can be laid down in regard to cases in which the High Court will exercise its extra ordinary jurisdiction of quashing the proceedings at any stage.

8. We are conscious of the fact that, Section 498A was added to the Code with a view to punish the husband or any of his relatives, who harass or torture the wife to coerce her or her relatives to satisfy unlawful demands of dowry. Keeping the

afore-mentioned object in mind, we have dealt with the matter. We do not find any allegation of subjecting the complainant to cruelty within the meaning of Section 498A of IPC. The records at hand could not disclose any willful conduct which is of such a nature as is likely to drive the complainant to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the complainant. So also, there is nothing on record to show that there was a demand of .

dowry by the appellants or any of their relatives, either prior to the marriage, during the marriage or after the marriage. The record also does not disclose anywhere that the husband of the complainant acted, with a view to coerce her or any person related to her to meet any unlawful demand of any property or valuable security."

47. Recently, the Hon'ble Apex Court in Achin Gupta Vs. State of Haryana and Another, Criminal Appeal No.2379 of 2024, decided on 03.05.2024, held as under:

"34. What constitutes cruelty in matrimonial matters has been well explained in American Jurisprudence 2nd edition Vol. 24 page 206. It reads thus:-

"The question whether the misconduct complained of constitute cruelty and the like for divorce purposes is determined primarily by its effect upon the particular person complaining of the acts. The question is not whether the conduct would be cruel to a reasonable person or a person of average or normal sensibilities, but whether it would have that effect upon the aggrieved spouse. That which may be cruel to one person may be laughed off by another, and what may not be cruel to an individual under one set of circumstances may be extreme cruelty under another set of circumstances."

(Emphasis supplied)

35. In one of the recent pronouncements of this Court in Mahmood Ali & Ors. v. State of U.P & Ors., 2023 SCC OnLine SC 950, authored by one of us (J.B. Pardiwala, J.), the legal principle applicable apropos Section 482 of the CrPC was examined. Therein, it was observed that when an accused comes before the High Court, invoking either the inherent power under Section 482 CrPC or the extraordinary jurisdiction under Article 226 of the Constitution, to get the FIR or the criminal proceedings quashed, essentially on the .

ground that such proceedings are manifestly frivolous or vexatious or instituted with the ulterior motive of wreaking vengeance, then in such circumstances, the High Court owes a duty to look into the FIR with care and a little more closely. It was further observed that it will not be enough for the Court to look into the averments made in the FIR/complaint alone for the purpose of ascertaining whether the necessary ingredients to constitute the alleged offence are disclosed or not as, in frivolous or vexatious proceedings, the court owes a duty to look into many other attending circumstances emerging from the record of the case over and above the averments and, if need be, with due care and circumspection, to try and read between the lines.

36. For the foregoing reasons, we have reached to the conclusion that if the criminal proceedings are allowed to continue against the Appellant, the same will be nothing short of abuse of process of law & travesty of justice. This is a fit case wherein, the High Court should have exercised its inherent power under Section 482 of the Cr.P.C. for the purpose of quashing the criminal proceedings.

37. Before we close the matter, we would like to invite the attention of the Legislature to the observations made by this Court almost 14 years ago in *Preeti Gupta* (supra) as referred to in para 26 of this judgment. We once again reproduce paras 34 and 35 respectively as under:

"34. Before parting with this case, we would like to observe that a serious relook of the entire provision is warranted by the legislation. It is also a matter of common knowledge that exaggerated versions of the incident are reflected in a large number of complaints. The tendency of over implication is also reflected in a very large number of cases.

35. The criminal trials lead to immense sufferings for all concerned. Even ultimate acquittal in the trial may also not be able to wipe out the deep scars of suffering of ignominy.

Unfortunately a large number of these complaints have not only flooded the courts but also have led to enormous social unrest affecting peace, harmony and happiness of the society.

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It is high time that the legislature must take into consideration the pragmatic realities and make suitable changes in the existing law. It is imperative for the legislature to take into consideration the informed public opinion and the pragmatic realities in consideration and make necessary changes in the relevant provisions of law. We direct the Registry to send a copy of this judgment to the Law Commission and to the Union Law Secretary, Government of India who may place it before the Hon'ble Minister for Law and Justice to take appropriate steps in the larger interest of the society."

38. In the aforesaid context, we looked into Sections 85 and 86 respectively of the *Bharatiya Nyaya Sanhita, 2023*, which is to come into force with effect from 1st July, 2024 so as to ascertain whether the Legislature has seriously looked into the suggestions of this Court as made in *Preeti Gupta* (supra). Sections 85 and 86 respectively are reproduced herein below:

"Husband or relative of husband of a woman subjecting her to cruelty.

85. Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Cruelty defined.

86. For the purposes of section 85, "cruelty" means-

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet .

any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand."

39. The aforesaid is nothing but verbatim reproduction of Section 498A of the IPC. The only difference is that the Explanation to Section 498A of the IPC, is now by way of a separate provision, i.e., Section 86 of the Bhartiya Nyaya Sanhita, 2023.

40. We request the Legislature to look into the issue as highlighted above taking into consideration the pragmatic realities and consider making necessary changes in Sections 85 and 86 respectively of the Bharatiya Nyaya Sanhita, 2023, before both the new provisions come into force."

48. In view of facts as well as law discussed hereinabove, this Court has no hesitation to conclude that no case much less under Section 498-A IPC is made out, since no case under Section 306 and 498 IPC is made out, as has been discussed hereinabove, no case can be said to be made out under Section 34 IPC. There are sufficient grounds for this Court to exercise its inherent jurisdiction under Section 482 Cr.P.C., for quashing the FIR and consequent criminal proceedings against the petitioners, to prevent abuse of process of law and to prevent unnecessary harassment to the petitioners against whom there is no evidence to connect them with the commission of offences as incorporated in the FIR. Otherwise also, continuance of the criminal proceedings against the petitioners in the present case would be a sheer wastage of time of the learned trial Court .

and the same would amount to subjecting the petitioners to unnecessary and protracted ordeal of trial, which is bound to culminate in acquittal.

49. Consequently, in view of detailed discussion as made hereinabove as well as law taken into consideration, present petitions are allowed and FIR No.61/2020 dated 02.06.2020 registered at Police Station East, District Shimla, under Sections 306, 498-A and 34 of Indian Penal Code, as well as consequent proceedings, pending adjudication before the Court below, are ordered to be quashed and set-aside.

The present petitions are allowed in the aforesaid terms.

Pending application(s), if any, also stands disposed of.

Tarunjeet Singh Bhogal vs State Of Himachal Pradesh And Others on 14 June, 2024
14th June, 2024 (Sandeep Sharma),

(Rajeev Raturi)

Judge